Project Gutenberg's How Members of Congress Are Bribed, by Joseph Moore

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**** START OF THIS PROJECT GUTENBERG EBOOK HOW MEMBERS OF CONGRESS ARE BRIBED ****

Produced by David A. Schwan, and David Widger

HOW MEMBERS OF CONGRESS ARE BRIBED.

An Open Letter.

A Protest and a Petition.

From a Citizen of California to the United States Congress

by Joseph H. Moore.

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The Lobbyist.

If a persistent intermeddler without proper warrant in Government affairs, an unscrupulous dealer in threats and promises amongst public men, a constant menace to sworn servants of the people in their offices of trust, a tempter of the corrupt and a terror to the timid who are delegated to power a remorseless enemy to wholesome legislation, a constant friend to conspirators against the common welfare for private gain—if such a compound of dangerous and insolent qualities merged in one personality, active, vigilant, unblushing, be a Lobbyist—then Collis P. Huntington is a Lobbyist at the doors of Congress, in its corridors and in its councils, at Washington.

He is the spirit incarnate of Monopoly in its most aggressive form. Among the intrenched powers which have sapped the vitality and are a menace to the existence of our form of republican government, he is strong with their strength, dangerous with their power, perilous with the insolence of their courtesies, the blandishment of their open or covert threats.

For nearly thirty years he has engendered broadcast political corruption in order to enrich himself and his associate railroad magnates at the public cost.

The declared representative now of those who have been thus far successful conspirators against the general Treasury and ruthless oppressors of every vital interest of defenceless California, with resonant voice and open hand he is clearly visible upon parade, demanding attention from the elected servants of all the people, and easily dwarfing the lessor lobby by the splendor of his equipment.

The English Parliament would relegate such an intruder to the street; the French Deputies point to his credentials with infinite scorn; Italian statesmen would shrink from a perusal of his record, and the Spanish Cortes decline to listen to any plea that men who are at one and the same time known robbers and declared beggars have blended and vested rights as both such to millions of public money.

To the vision of thoughtful rulers and myriads of patriots throughout the world, reading history now as it is being created from day to day, the Anarchist naturally looms in the background of such a spectacle.

A Search-Light.

In order that a proper side-light be flashed upon him; that his choice methods of dealing with men and accomplishing his purposes may pass in review; that some Californians and many national legislators may be informed of that which they never knew, or reminded of that which they may have forgotten; that the record of his accidental and forced confession in open Court of an appalling use of money in defending stolen millions and grasping after more shall be revived; that his low estimate of the honor and integrity of public men, and his essential contempt for the masses, may be contrasted with his high appreciation of the debauching power of money; that the enslavement by himself and his associates of the naturally great State of California and her indignant people may be once more proclaimed with bitter protest and earnest appeal to all the citizens of our sister States throughout our vast commonwealth; and to the end that no such palpable embodiment of political infamy may continue to stalk without rebuke through all the open ways and sacred recesses of popular power crystallized at Washington—I propose to revive the recollection of—and to briefly comment on—the whilom notorious Huntington-Colton Letters which became public property as part of the records of the Superior Court of Sonoma County in this State.

Huntington-Colton Letters.

Of an apparent nearly 600, only about 200 are in evidence. It is to be regretted that more did not come to light. If the public could only be privileged to read what he wrote to Leland Stanford, and to Charles Crocker, and to Mark Hopkins—as well as to David D. Colton—there there would be much to reflect upon. But the public never will see such letters. The nature of them required their immediate destruction.

As Huntington explains:

"I am often asked by my associates in California about my views in matters that I have written to the others of, and allow me to say that all letters that I number consecutively, I have supposed would be read by all, and then go into the basket together." (No. 561. N. Y., April 7th, 1875.)

That was the safest way. It is not wise to allow great numbers of thinking people to read that they are victims of chicanery, corruption in high places, bribery, hire and salary, and oppression through conspiracy. There might be something more than a spice of danger in much carelessness.

Tone of the Letters

The letters under consideration, written during the four years from October, 1874, to October, 1878, tell a plain enough, tale of their own. They abound with cool and easy allusions to various men and things: to "convincing" public servants; to "fixing" committees in Congress; to "persuading" the most exalted officials; purchasing National legislators, as well as Territorial Governors; to deceiving local communities, and the United States generally, with well considered cunning; to working noisily with blatant instruments and quietly through masked agents; to creating public opinion by means of false showings; to electing or defeating candidates for office; to smiting enemies and rewarding friends.

Viewed as a contribution to the literature of fatal political infection the letters are unique. They embody an epitome of just such work as their writer is prepared to now continue, if the temper of the American people will

permit him to do so.

The plane upon which his exertions will possibly be made may be justly imagined from the intimate knowledge and implied approval of bribery on a collossal scale which he mentions frankly and carelessly thus:

"I returned from Washington last night. The sub-committee of the R. R. Committee of the House have agreed to report Scott T. and P. Bills through to San Diego, and I am disposed to think the full committee will report it to the House. It can be hoped, but I doubt if it would be worth the cost, as I do not think it can pass the House. Scott, no doubt, will promise all the—say $40,000,000 that the Act would give him." (No, 428. N. Y., Feb. 23, 1878.)

And thus:

"The T. and P. folks are working hard on their bill. * * * They offered one M. C. one thousand dollars cash down, five thousand when the Bill passed and ten thousand of the bonds when they got them, if he would vote for the Bill." (No. 455. N. Y., May 3, 1878.)

The thought naturally occurs here: If such matter-of-course mention of appalling debauch cry of political honor and morality reflects the character of a conscience and foreshadows the scope of a purpose,—if such were his estimate of Congress, and such his belief then—how much are the Central Pacific magnates disposed to promise now to soon evade and eventually escape payment of, say, $67,000,000 now nearly due to the Government?

"The People Can Never Have an Open Highway."

In 1874, Thomas A. Scott, of Pennsylvania, proposed to build the Texas and Pacific Railway, and to secure subsidies for that purpose from the Southern States, as well as from Congress.

[With the question of subsidies in the abstract, this writing has nothing to do.]

If he succeeded, the Southern Pacific would lose its early clutch on the throat of our commerce, an hundred thousand voters would escape from political bondage—its paralyzing grip would be weakened, if not broken. There was deadly issue at once.

Scott wrote to Huntington Dec. 9, 1874:

"We expect to build our road to San Diego, as already pledged to the public to do so." (No. 416. N. Y., Dec. 10, 1874.)

Later, Huntington wrote to Colton:

"Scott is doing all he can to push his Texas Pacific Road, and his strength all lies in one thing: The Southern Pacific of California is controlled by the Central Pacific and Union Pacific, and will be used only to help those great monopolies, and if we are beat by Scott, it will be because our friends have persisted in helping him to convince the public the above is true, and the people can never have an open highway so long as the Central Pacific controls all the roads that reach out to the Pacific." (No. 267. N. Y., April 3, 1877.)

Behind the Scenes.

These Colton letters emphasize Huntington's opinions, and expose his methods during the struggle. Not completely, of course. One must read between the lines occasionally. Something is left to surmise—to the reflection, of Hamlet's Uncle, that

"In the corrupted currents of this world offense's gilded hand may shove by Justice; and oft 'tis seen the wicked prize itself buys out the law."

When he speaks of Mr. Justice Field not sitting in a certain suit (No. 475. N.Y., Sept. 30th, 1878), and, just how he "got the Secretary of War out of all ugly idea in about twenty minutes," saw three other Cabinet members shortly after, and caused a President to abandon being "cross" and to "laugh heartily" (No. 361. N. Y., Oct. 10th, 1877), is not precisely clear; nor are details given as to how the Railroad Committee was sure to be "convinced"

(No, 59. N. Y., Nov. 30, 1879) or exactly what he did before writing: "I stayed in Washington two days to fix up R. R. Committee in Senate. * * * * The Committee is just as we want it." (No. 261. N. Y., March 7th, 1877.)

And it should be remembered, too, that the writer prided himself in confessing to deliberate wariness in bribery and, caution in corrupting, occupying in, "high ground" and preparing in advance to defy investigators. As, witness:

"I returned from Washington this morning; shall go back next Monday night. * * * Scott is working mostly among the commercial men. He switched Senator Spencer of Alabama and Walker of Virginia this week, but you know they can be switched back with the proper arrangements when they are wanted; but Scott is asking for so much that he can promise largely to pay when he wins, and you know I keep on high ground." (No. 110. N.Y., Jan. 29th, 1876.)

And again:

"When I see you I shall have much to tell you of Washington matters that I have not time to write, but I keep on high ground so that we cannot be hurt by any investigation." (No. 138. N.Y., March 23d, 1876.)

No just inference can be drawn from such confidential utterances that the "high ground" of safety was fertile soil bearing the flowers and fruits of political purity, rather than a chosen rock of refuge from continuous danger; and the allusion to possible "investigation" involves the confession that it was deserved and the dread that it might occur.

Use of Influence, and Power of Money.

But, there is no obscurity of meaning, nor is there much room for doubt, that there is the expression of mature judgment based upon wide experience and ample practice, in the following:

"I think this coming session of Congress will be composed of the hungriest set of men that ever got together." (No. 389. N.Y., Nov. 30th, 1874.)

"I sent a man to Richmond, Va., on Saturday, and one to Albany to-day, to get resolutions passed by the legislatures against subsidies. I think it will control two members of the R. R. Committee." (No. 117. N. Y., Feb. 14th, 1876.)

"I left Washington on Friday, the 11th. I think our matters are safe there for the Session." (No. 218. N. Y., Aug. 4th, 1876).

"I think our land matters in Washington have been fixed." (No. 366. N. Y., Oct. 29th, 1877.)

"I think the R. R. Committee is right," (as made up for the 45th Congress), "but the Com. on Territories I do not like. A different one was promised me." (No. 373. N. Y., Oct. 30th, 1877.)

"I do not think we can get any legislation this session for extension of land grants unless we pay more for it than it is worth." (No. 378. N. Y., Nov. 9th, 1877.)

"If we are not hurt this session it will be because we pay much money to prevent it." (No. 381. N. Y., Nov. 15th, 1877.)

"This Congress is nothing but an agrarian camp." (No. 449. N. Y., April 19th, 1878).

"I have done all I can to prevent certain bills from being reached, and do not think any bills can be that will hurt us." (No. 468. N. Y., June 15th, 1878.)

"I have received several letters and telegrams from Washington to-day, all calling me there, as Scott will certainly pass his Texas Pacific bill if I do not come over; and I shall go over to-night. * * * It cost money to fix things so that I would know his bill would not pass. I believe that with $200,000 I can pass our bill." (No. 107. N. Y., Jan. 17, 1876.)

A Low Estimate of Congressional Brains and Public Interest.

The alarm evidently felt and certainly shown that the Central Pacific and Southern Pacific were apt to be commonly considered and treated as being one concern, and not as distinct and separate things—incestuous and eager lovers instead of alien rivals and natural foes—conspirators rather than competitors—would be simply amusing were it less offensive and more in accordant vibration with the pulsations of common sense amongst a people not wholly fools. That it was thought possible to foster the idea and expand it into a belief, that Stanford, Huntington, the Crockers and Hopkins—Janus faced—looking northerly along monopoly lines, were the implacable enemies of the Crockers, Stanford, Hopkins and Huntington gazing along monopoly lines southerly; and that the interests of the government and the good of the people required the tender coddling of that nursling until it became strong enough to sit up and take nourishment in the shape of meaty millions of dollars, involves a sarcastic comment upon measured law makers and estimated victims. Yet the improbable becomes at times the possible and the actual.

Mark the plaintive wailing in the letters:

"On account of this legislation I think it important that the S. P. should be disconnected from the Central as much as it well can be." (No. 416. N. Y., Dec. 10, 1874.)

"Governor S. said some good things to the Chronicle interviewer; but I think it unfortunate that he should so closely connect the C. P. with the S. P., as that is the only weapon our enemies have to fight us with in Congress." (No. 590. N.Y., May 28, 1875.)

"If it was known that the C. P. does not control the S. P., I think we could beat (Scott) all the time." (No. 157. N. Y., April 27, 1876.)

"Stanford, Tom Scott and many others have been trying for so long to convince the country that the Central Pacific is building the S. P. that I am not able now to convince Congress that it is not true." (No. 24. N. Y., Dec. 25, 1876.)

"I have little or no fears of his (Scott) doing anything at the extra session, but if he can convince Congress that the S. P. is controlled by the C. P. * * * * I believe he can pass his bill to build on the direct line between Ft. Yuma and San Diego, and I think I know enough of Washington to know how he to can do it." (No. 268. N. Y., March 20, 1877.)

"His (Scott) strength all lies in one thing: The S. P. of Cal. is controlled by the C. P. and U. P.; and will be used only to help those great monopolies." (No. 276. N. Y., April 3, 1877.)

"What you say about our stopping at Ft. Yuma is well, and would be almost conclusive if the S. P. was not owned and controlled by the C. P.; but when we tell Congress we are willing to build this road, the answer is always the same: Of course you are to protect the Central, but what the country wants is a competing road." (No. 307. N. Y., May 17, 1877.)

"The fact is, he has nearly convinced the country that the C. P. is building the S. P. to prevent competition; and I find it very hard to It make them believe anything else." (No. 425. N. Y., Feb. 25, 1878.)

Wrongs of California.

So much for the United States. Let us now glance at California, as mangled by the showing of the letters.

And it may as well be stated just here, that Leland Stanford and his associates, having first in mind and at heart the design to eventually defraud the United States Government of many millions of dollars, bent all their energies next to the maintaining of their ownership of California and her citizens, and all their property; and to keeping under control their rights, privileges, hopes, fears, ambitions and acts ever and ever.

A competing line—"an open highway"—across the continent would balk their purposes. The Union Pacific was dangerous in that respect. Therefore, it was to be given 10/22 of the Southern Pacific stock, and become a partner instead of a rival. Jay Gould was to participate in the spoils of our bondage. Concerning which the Letters say:

"I will say here that I think well of this, as it will have our interest in the Central greater than in the Southern Pacific, which will satisfy the Union Pacific, which, in my opinion, is very important. Of course you will see the

importance of the public not knowing anything of this arrangement." (No. 24. N. Y., December 25th, 1876.)

Check to San Diego.

How neatly the San Diegans were induced to continue to tread out the old measures of railroad corn for their masters, whose private intentions were to lull them into silence with false hopes, fasten them in commercial vassalage, and denounce, as well as keep comparatively deserted, their splendid harbor, is quite clearly shown:

"I should infer from one of the newspaper clips that you sent that our San Diego friends were displeased about something." (No. 14. N. Y., Sept. 23, 1875.)

That was intended to be facetious.

"In your interesting letter of the 5th you mention San Diego matters. Now it is well to switch that people from the Texas Pacific road, but I would suggest that you keep on asking them what they will do, but not make them any definite proposition, for if you do, it will be sent East at once, and I am working with the South and saying to them that our interest lays with them; and that what San Francisco and Cal. wants is a direct communication with New Orleans and other Gulf ports, and that our interest lays that way; and we oppose the Texas Pacific because we think if it is built it will prevent for many years our getting such a connection." (No. 37. N. Y., October 18, 1875.)

That was not merrily written.

"I would much like a report of the harbor of San Diego, as I think it is, but I would not care to pay much money for it. Hyde is a bright man, and if he knows how worthless the harbor of San Diego is for an extensive deep sea commerce, I would like a report from him." (No. 335. N. Y., August 18, 1877.)

In California Politics.

The dominating influence of the railroad monopolists in California politics has been California politicians. They are in the vein of the letters.

The voters of California have for many years been the playthings of a few political bandits. They have been driven in the harness of their various parties to the polls by "bosses" shrewdly selected and liberally paid. The results may be seen in glittering heaps of spoils, concentrated in a few hands, in disheartening displays of vast wealth by arrogant possessors who are not properly the owners of it, and who are limited alike in number as in intelligent patriotism; may be felt in unwarranted tax taxation—may be heard in the derision of insolent laughter from lips merry with the delight of fancied security.

The creation of the "boss" rule simplified systematic bribery, concerning which read:

"I received your telegram that Wm. B. Carr has had for his services $60,000 S. P. bonds; then asking how much more I think his services are worth for the future. * * * In view of the many things we have now before Congress * " * it is very important that his friends in Washington should be with us, and if that could be brought about by paying Carr say $10,000 to $20,000 per year, I think we could afford to do it, but, of course, not until he had controlled his friends. I would like to have you get a written proposition from Carr, in which he would agree to control his friends for a fixed sum, then send it to me." (No. 99. N. Y., Jan. 14, 1876.)

So much for California.

Cost of Arizona Legislature and Voters of New Mexico.

"If we had a franchise to build a road or two roads through Arizona (we controlling, but having it in the name of another party) it could be used against Scott. Cannot you have Stafford [Governor of Arizona] call the Legislature together and grant such charters as we want at a cost of say $25,000? If we could get such a charter as I spoke to you of it would be worth much money to us." (No. 18. N. Y., Sept. 27, 1875.)

"I think Stafford had better be in Washington at the commencement of the regular session to get Congress to confirm the Acts of Arizona." (No. 366, N. Y., Oct. 29, 1877.)

As to New Mexico:

"I saw Axtell, Gov. of New Mexico, and he said he thought that if we would send to him such a bill as we wanted to have passed into a law, he could get it passed with very little or no money; when, if we sent a man there, they would stick him for large amounts." (No. 366. N. Y., Oct. 29, 1877.)

Corruption and Bribery.

Such in part, is the story of the Letters. If it is not one of appalling corruption and unhesitating bribery often repeated, what else is it? Why should it cost a specific $200,000 to pass any proper bill through Congress? $25,000 to convene a Territorial Legislature? $10,000 to $20,000 a year to influence justly a few Californians? Influence thus exercised is as, palpable as it is direct.

Nature and Value of Picnics.

But ends are sometimes attained by indirection. The Letters tell how. For example:

"I have been working for the last two month to get a party, of say, 25 Southern members of Congress to go out to California and over the line of the Southern Pacific and see what we have done and our ability to do. * * * I told Senator Gordon of Georgia if he could get up a party of the best men of the South we would pay all their expenses, which. I suppose would not be less than $10,000, and I think it would be money well expended." (No. 208. N. Y., July 26th, 1876.)

But these Southern gentlemen seem to have been somewhat hesitating, as attest:

"I have telegraphed to-day to you to get some of the prominent men of San Francisco to telegraph to Gordon, Senator from Georgia, with other Southern men to go. While Gordon and some others are not afraid to go, G. tells me, that some of his friends do not like to go on an invitation from the R. R. Co." (No. 213. N. Y., Aug. 7th, 1876.)

And the fear of a thoughtful constituency appears to have resulted in "some doubts."

"You must have had a lively time in getting so many good names signed and sent on in so short a time, inviting our Southern brethren to come to Cal. I saw Gordon and several others just before Congress adjourned, and they said they would go, but I have some doubts about it, as most of the members of Congress are looking after their re-election." (No. 221. N. Y., Aug. 25th, 1875.)

By the light of the above extracts may perhaps be interpreted the meaning of the news that has just come by telegraph that the "Senate Committee on Pacific Railroads will take a trip, soon after Congress adjourns, to San Francisco by way of the Union, Central and Southern Pacific systems—in Senator Brice's private car."

Protest and Petition.

It would be an interesting, and to me a congenial task, to further analyze the Letters; to show what tools the monopolists secured, and how they worked with them; to set forth how rivalry was met and defeated; railroads—such as the Santa Monica—absorbed or paralyzed, and many things were done and undone. But my intention at the outset was simply to proclaim with irrefrageable proofs some shameful facts, and to protest against any faltering in enforcing they laws as they exist, compelling payment to the Government of great debts soon to mature. Of principal and interest there will be due from these monopolists and political corruptionists (the first payment, January 16, 1895; the last, January 1, 1899), $77,049,630.66—less some few millions now to their credit. The money can be collected, and it ought to be. In the meantime, the toleration of a lobby confessedly corrupt argues the existence of a Congress at best incompetent.

Joseph H. Moore

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